

PUBLIC SUBMISSION

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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

AI is theft of copyrighted materials and negatively impacts the livelihoods of the people it has stolen from. Individuals should have the same copyright protection that big companies like Disney receive for their copyright. If I can't take Mickey Mouse and do what I want with him, AI companies should also not be allowed to take my and other artists' copyrighted materials to do with as they please, especially for profit. Please do not allow AI companies to steal from artists for their own profit or fun. AI exists to replace artists and steal their jobs and their works. It is not fair use or transformative because a machine can not add any of their own experience or self into the 'new' art, which is really just an amalgamation of copyrighted material rather than something actually new. It simply regurgitates what it has been trained on and there is a risk of it outputting copyrighted ideas or images that are nearly identical to the work it has been trained on. It does not learn or create like a person who adds their own experiences into the transformative art. AI has no place competing in the market with artists whose copyrighted material it uses, either. A human that takes a few days to complete a work at best can not compete fairly with a machine that can output images and material instantly. It is unfair to allow a machine to use copyrighted material to compete in the same market as the people whose copyrighted material it is using when the humans have no hope of being able to compete with them.

AI should be required to

- A) delete training data that uses copyrighted material that they did not gain implicit consent for
- B) Be required to obtain explicit consent for future training data via an OPT IN, not an OPT OUT system. An OPT OUT system allows them to train on data of artists who for one reason or another are unable to opt out, whether because they no longer have access to the account, or they have passed away, etc. it should NOT be default that they are allowed to use it unless you say no.
- C) They should have to compensate the artists that they have already made a profit off and required to compensate artists in the future if they are using their materials via the opt in system.
- D) There needs to be a watermark necessity for materials that are AI generated showing that they are AI generated as a disclaimer to stop the spread of potential mis and dis information.